NO. CV-24-101

In the Arkansas Court of Appeals

Clyde Hatchett Sr. and Violentee Hatchett

Appellant

v.

Hatchett-Bullock Cemetery Association Inc.

Appellee

On Appeal From Pulaski County Circuit Court

The Honorable Morgan E. Welch Jr., Circuit Judge

APPELLEE'S BRIEF

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POINTS ON APPEAL

1. The circuit court did not err in granting injunctive relief.

City of Dover v. City of Russellville, 363 Ark. 458, 215 S.W.3d 623

Anita G, LLC v. Centennial Bank, 2019 Ark. App. 217, 575 S.W.3d 561

2. The circuit court did not clearly err in finding that the Association has the right to manage the cemetery.

Powhatan Cemetery Ass'n v. Phillips, 90 Ark. App. 424, 206 S.W.3d 277 (2005)

3. Clyde and Violentee are barred by waiver, equitable estoppel, laches, and acquiescence from disputing the Association's right to manage the cemetery.

Evans v. Hamby, 2011 Ark. 69, 378 S.W.3d 723

Evelyn Hills Pharm., Inc. v. First Nat'l Bank, 289 Ark. 351, 712 S.W.2d 291 (1986)

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JURISDICTIONAL STATEMENT

We agree that the Court has jurisdiction. The order appealed from is not interlocutory under Arkansas Rule of Appellate Procedure–Civil 2(a)(6) but is instead final under Rule 2(a)(1). As a result, the record had to be (and was) filed within the 90-day deadline for final orders, not the 30-day deadline for interlocutory orders under Rule 2(a)(6). Ark. R. App. P.–Civ. 5(a).

A potential jurisdictional hiccup is that the petition appears to seek damages, and no order grants, denies, or otherwise dismisses that apparent claim. (RP12). The circuit court, however, found that the petition does not seek damages. (RP29). Because the Association did not cross-appeal, that finding is the law of the case. See, e.g., *Ark. Appraiser Licensing and Certification Bd. v. Quast*, 2010 Ark. App. 511, at 5 n.1. The order thus addresses all claims asserted in the petition, which makes the order final and subject to the 90-day record-filing deadline. Ark. R. App. P.–Civ. 5(a).

STATEMENT OF THE CASE AND THE FACTS

The Hatchett-Bullock Cemetery Association, Inc. (the Association) sued Clyde and Violentee Hatchett claiming that it owns and manages the cemetery; that Clyde and Violentee, who have no ownership interest in the property, had filed a deed purporting to transfer the cemetery from themselves to themselves; and that they, without authority from the Association, had sold burial sites to and allowed

burials of nonfamily members. (RP3–6). The Association sought injunctive relief and an order setting aside the fake deed. (RP4–11). The circuit court held a hearing in September 2023. (RT5).

1. April Harris's Testimony

In 1966, the children of Doc Hatchett Jr. and Annie Bullock petitioned to create a private family cemetery, and a permit was issued. (RT15–17, 62–63, 143, 144). The years passed and the city grew up around the cemetery, which now sits nestled between commercial buildings in North Little Rock on Dewafelbakker Lane between Maumelle Boulevard and Crystal Hill Road. (RT12). The family also grew. With more people came the need for more structure and control over the cemetery's management to prevent unauthorized burials, including unauthorized burials that Clyde was conducting. (RT13, 53). So, in 2009, the family formed the Association, an Arkansas nonprofit corporation. (RT13, 53, 64).

From 2009 until 2023, the Association authorized 49 burials. (RT82). For the burials, it charges a nominal fee. (RT 13). It has its annual meeting each Memorial Day. (RT59). It follows the rules that were adopted in 2009. (RT19–20). And it charges a per-family fee, which includes a fee for the cemetery's road project. (RT21).

Nobody questioned the Association's sole right to manage the cemetery until Clyde, disgruntled, gave the okay for two unauthorized burials in 2022. (RT32, 33, 46, 52, 53, 83). His revolt, however, actually began a year earlier when Clyde and

Violentee executed a fraudulent deed purporting to transfer the cemetery from themselves to themselves, even though neither of them held an ownership interest in the cemetery. (RT25–26, 148). The deed reflected that no consideration had been paid. (RT148).

Also in 2021, Clyde spraypainted over the phone numbers on a sign the Association had placed at the cemetery entrance in 2009. (RT28, 82). Here's the spraypainted sign: (RT151). The bottom of the sign that Clyde spraypainted over contained the phone numbers for the Associations' board members. (RT29). So the Association bought and installed a new, larger sign with phone numbers for the current Board members: (RT29, 151). Clyde spraypainted over that one, too: (RT152). A camera caught him in the act. (RT34). And he left a notice at the gate saying that anybody wanting to conduct a burial should contact him rather than the Association. (RT46).

Clyde's misdeeds continued. In July 2022, he cut the lock and the latch on the gate, put a new lock on, and absconded with the security camera.[1] (RT30, 31, 34, 40, 41, 153, 155). In September 2022, after the Association installed a new lock, Clyde again cut the lock, left only a rope holding the gate in place—a rope that anybody could easily remove—and dug a hole to bury a body. (RT30–31, 153, 164). Here's the gate with only the rope after Clyde cut the lock: (RT153). At that

[1]Before 2009, the family had given Clyde a key to the cemetery so he could cut the grass. He never cut the grass, but he kept the key. (RT40).

same time, Clyde posted a sign declaring that he and he alone was president and included his own board members' phone numbers. (RT46).

Clyde authorized the two burials in 2022 without the Association's knowledge and accepted money for the burials. (RT32, 46, 52, 53). The people who paid Clyde later came to April, the Association's president, demanding their money back. (RT12, 13, 46, 52, 53).

There's more. In 2023, Clyde, without the Association's permission or knowledge, filed the Association's annual report with the Secretary of State listing himself as president, his brother Larry as vice president, and Violentee as secretary. (RT171). But none of them has ever held any position with the Association or had authority to complete documents for the Association. (RT24, 81). April corrected the filing. (RT23, 147).

Although the family had signed a deed granting the cemetery property to the Association, the deed was destroyed in a fire before it was filed. (RT64–65).

Clyde gave April no notice of a meeting he supposedly held to elect his own slate of cemetery officers. (RT80). Nor was she present at that meeting, if it even occurred. (RT81).

2. Clyde Hatchett Sr.'s Testimony

Clyde, 72 years old as of the hearing, has had "three strokes and a brain surgery," which cause him to "get a little mixed up." (RT68, 69). He claimed that the Hatchett family elected him president of the cemetery a "year or so" earlier.

(RT68, 70, 92, 93). The "organization" he was elected president of is unincorporated. (RT72). Confusingly, he said he had been removed from the board and listed as deceased. (RT73, 77).

He admitted that he "probably made a mistake" by listing himself and his wife as grantors on the deed. (RT69). He admitted that the Association's signs were already up at the cemetery. (RT72). He admitted to putting up his own signs saying to contact him. (RT72, 75, 76). He admitted to cutting the lock. (RT91). He admitted to knowing in 2009 that the Association had been formed and "assum[ing] that it was the same" as the family. (RT94). He admitted that he became disgruntled with the Association only when his cousin Stephanie became secretary and treasurer and the Association began charging "too much" and went from a dues-paying system to a lump-sum payment for burials. (RT74, 76). He admitted to sending a family member to someone other than the Association for a burial at the cemetery. (RT79). And he admitted to paying the Association's burial fees when his son and brother died. (RT74–75).

Clyde did deny, however, marketing the cemetery as a public cemetery and said he would not. (RT88). He also denied having been paid any money for the cemetery. (RT88, 89). "I just want everything to be a family, all of us to be a family, as we're supposed to be. That's all I want." (RT91).

3. Violentee Hatchett's Testimony

Violentee and Clyde are married to each other. (RT95). She learned in 2014 that the cemetery had been incorporated. (RT95, 98). She claims that the Association did not get permission from the family to incorporate and that Clyde was elected president of the board in in September 2021. (RT98–100).

She admitted to having brought no documents to the hearing that authorized notice to family members by phone for the meeting Clyde called. (RT101). She introduced into evidence the minutes of the September 2021 meeting. (RT172). Although the minutes talk about a "cemetery fund," there is no such fund. (RT105–106, 172). She also introduced an undated and unsigned document that purports to be the board's bylaws. (RT112, 173). Their goal in creating their own organization was to "expunge the name Hatchett-Bullock Association, Inc., with the connection of the Hatchett-Bullock Cemetery." (RT110).

4. Larry Hatchett's Testimony

Larry is Clyde's brother. (RT116). He claims to be vice president of the cemetery board. (RT124). He testified that he, "[a]ll my kids, my cousins" voted for Clyde to be president. (RT116). The reason they voted for him is that "it looked like things was getting out of hand," and it was costing too much to be buried at the cemetery. (RT117). He admitted that the Association's secretary was taking care of the cemetery but then began charging too much. (RT117).

5. Closing Arguments

The Association's attorney argued that the Association is legally incorporated, is registered with the Secretary of State, and is entitled to possess and run the cemetery. (RT125, 127). He asked for the deed to be set aside and for injunctive relief by enjoining Clyde and Violentee from holding themselves out as owners of the cemetery, from marketing the cemetery to nonfamily members, and from taking any other action regarding the cemetery without the Association's permission. (RT127). He clarified that the Association was not asking for money damages. (RT132).

Clyde and Violentee's attorney argued that the Association had not shown that it has title to the property given the lack of a deed. (RT133).

The circuit court found that the case was ripe for adjudication under Arkansas Rule of Civil Procedure 65(a)(2). The court viewed the issue as the right to administer the cemetery rather than ownership. (RT133, 134). The court found that the Association had managed the cemetery for 14 years and that, 12 years into that management, Clyde and Violentee tried to establish a competing organization. (RT135, 138). The court found that the deed from Clyde and Violentee to themselves was void and should be set aside for lack of consideration. (RT139). And the court found that the family converted the cemetery to a corporate

nonprofit entity in 2009 and that the Association would be irreparably harmed without an injunction. (RT139–140).

6. The Order

In its order, the circuit court found that the petition sought only injunctive relief and that the court could thus advance the trial on the merits under Rule 65(a)(2). (RP29). The court found that Clyde and Violentee's deed to themselves was void for lack of consideration and because they had no interest in the land on which the cemetery is located. (RP29–30).

The circuit court also found that the Association had shown a likelihood of success on the merits and, in fact, had prevailed on the merits. (RP30). The court found that irreparable harm would ensue absent an injunction and granted a permanent injunction enjoining Clyde and Violentee from (1) holding themselves out as owners of the cemetery, (2) burying nonfamily in the cemetery, (3) marketing gravesites to nonfamily, or (4) entering the cemetery without the Association's permission. (RP30).

ARGUMENT

This is a case of too much, too late. The Association managed the family cemetery for 12 years and 49 burials without incident. Two of the burials were Clyde Hatchett's son and brother, which Clyde paid the Association for. But in 2021, twelve years after the Association's management began, Clyde and his wife, Violentee, became disgruntled. They faked a deed, concocted a competing

organization, cut locks and latches, spraypainted signs, misrepresented themselves as Association officers on official documents, and told people to pay Clyde for unauthorized burials. Those misdeeds interfered with the Association's management of the cemetery, a management that the family authorized in 2009, a management that Clyde and Violentee acquiesced in for 12 years. The circuit court therefore did not abuse its discretion when it enjoined them from interfering with that management.

1. Given the circuit court's ruling, Clyde and Violentee's choice of arguments, and their concessions, the issue on appeal is narrow.

1.1. The only issue on appeal is the injunction against entering the cemetery without the Association's permission.

Clyde and Violentee do not challenge the circuit court's decisions to advance the trial on the merits or set aside their fake deed. That leaves the grant of injunctive relief as the issue on appeal.

But not all the injunctive relief is at issue. The circuit court granted injunctive relief in four respects. The court first enjoined Clyde and Violentee from representing themselves as owners of the cemetery. (RP30). Because they do not challenge the ruling that they do not own the cemetery, they cannot challenge the injunction that bars them from representing that they do. See *Waller v. Banks*, 2013 Ark. 399, at 3 n. 4 ("All arguments made below but not raised on appeal are abandoned."). Two other facets of the injunction were that Clyde and Violentee not

bury nonfamily members in the cemetery or market gravesites to nonfamily members. (RP30). Clyde agreed not to market the cemetery as a public cemetery and agreed that it was for family only. (RT88–89). As their attorney promised, they "never, nor will they in the future, promote this a public cemetery or try to solicit anyone." (RT136). Thus, they have voluntarily acquiesced to that part of the injunction. See *Beck v. Beck*, 2017 Ark. App. 311, at 8, 521 S.W.3d 543, 547 (holding that a party who voluntarily acquiesces to a judgment may not appeal the judgment). The only injunctive relief remaining is the injunction barring Clyde and Violentee from entering the cemetery without the Association's permission. (RP31).

1.2. The circuit court did not rule that the Association owns the cemetery.

The opposing brief assumes that the circuit court found that the Association owns the cemetery. But the court did not make that finding. (RP29). When Clyde and Violentee insisted that the Association claimed ownership, the circuit court responded that "it's more of a right to administer the cemetery," "the issue … has to do with the administration of the cemetery," and "the question here is who has the authority to [administer the cemetery] or the apparent authority to do it." (RT133, 134, 136). Thus, the right to administer the cemetery, not ownership, formed the basis for the circuit court's order. Therefore, the part of the opposing brief attacking ownership is irrelevant.

1.3. Clyde and Violentee may not argue for the first time in their reply brief that the Association has no right to manage the cemetery.

Clyde and Violentee cannot, as we expect they will, argue for the first time in their reply brief that the circuit court erred in finding that the Association has the right to manage the cemetery. *City of Dover v. Barton*, 342 Ark. 521, 531, 29 S.W.3d 698, 703–04 (2000) (no new arguments in reply brief). And although an appellant may reply to arguments that the appellee has raised, that does not apply to issues that were a basis for the circuit court's ruling. See, e.g., *Bibbs v. Cmty. Bank of Benton*, 375 Ark. 150, 160, 289 S.W.3d 393, 399–400 (2008).

In *Bibbs*, for example, the circuit court ruled that neither plaintiff had standing to sue, because a bankruptcy trustee with the exclusive right to sue had not abandoned that right. *Id.* at 154, 289 S.W.3d at 396. In their opening brief, the appellants in *Bibb* did not challenge the abandonment finding but instead waited until their reply brief. The Arkansas Supreme Court declined to address the issue, because the appellants had not made the argument in their opening brief. *Id.* at 160, 289 S.W.3d at 399. Similarly, Clyde and Violentee failed to argue in their opening brief that the circuit court's erred in finding that the Association had the right to manage the cemetery. They may not do so now. And based on that failure, this Court may affirm. See, e.g., *Marshall v. Rubright*, 2017 Ark. App. 548, at 5 (affirming where the appellant failed to challenge all the bases the circuit court relied on).

2. The circuit court did not err in finding that the Association has the right to manage the cemetery.

Even if Clyde and Violentee could challenge the Association's right to manage the cemetery in their reply brief, the Court should affirm. First, Clyde and Violentee are barred by waiver, equitable estoppel, laches, and acquiescence from disputing the Association's management. And although the circuit court did not explicitly rule on those issues, this Court may affirm for any reason the record supports. *Smith v. Bowser*, 2020 Ark. App. 425, at 6–7. Second, the circuit court did not err: the Association has the right to manage the cemetery.

2.1. Equity bars Clyde and Violentee from disputing the Association's right to manage the cemetery.

Four equitable principles bar Clyde and Violentee from disputing the Association's right to manage the cemetery: waiver, equitable estoppel, laches, and acquiescence. We address each in turn.

2.1.1. Waiver

"Waiver is the voluntary abandonment or surrender by a capable person of a right known by him to exist, with the intent that he shall forever be deprived of its benefits. It may occur when one, with full knowledge of material facts, does something which is inconsistent with the right or his intention to rely upon the right. The relinquishment of the right must be intentional." *Bharodia v. Pledger*, 340 Ark. 547, 555, 11 S.W.3d 540, 555 (2000) (internal citations omitted).

Clyde knew in 2009 that the Association had been formed. (RT94). Violentee knew by 2014. (RT95, 98). Clyde knew that his cousin Stephanie was

the Association's secretary and treasurer. (RT74). He knew that the Association had posted a sign on the cemetery gate, (RT72), a sign that had been up since 2009 referring to the "Hatchett-Bullock Cemetery Association, Inc." (RT82, 151) (emphasis added). And he knew that the Association was managing the cemetery, which is why he paid the Association for the burial of his son and brother. (RT74–75). Yet he did nothing for 12 years, nothing for 12 annual meetings, nothing for 49 burials. Not until he became disgruntled in 2021 did he do something. By then, he had waived his right to object to the Association's management.

To put it in terms of the waiver analysis, Clyde knew for 12 years, Violentee for seven, that the Association had been created to manage the cemetery. If they thought that the Association was exercising authority that it did not have, Clyde and Violentee could have objected in 2009 or 2010 or 2011 or any of the other ten years between then and 2021. But they didn't. They instead complied with the sign on the gate that said to contact the Association's officers about burials. They paid for the burial of Clyde's son and brother. And Clyde signed and filed the Association's annual report with the Secretary of State as if, in his mind, the Association had authority. (RT171). Those actions are inconsistent with his and Violentee's right to object to the Association's management. And there was certainly enough evidence to believe that their relinquishment of any such right was intentional. The requirements for waiver from *Bharodia* were thus met.

2.1.2. Equitable estoppel

For equitable estoppel to apply, four things must exist:

- the party to be estopped knew the facts;
- he intends that his conduct be acted on or he acts so that the party asserting estoppel has a right to believe the other party so intended;
- the party asserting estoppel is ignorant of the facts;
- the party asserting estoppel relies on the other's conduct and is injured by that reliance. *Evans v. Hamby*, 2011 Ark. 69, at 8, 378 S.W.3d 723, 729; *Frazier v. Office of Child Support Enf't*, 2021 Ark. App. 65, at 14, 618 S.W.3d 415, 425 (citation omitted).

The facts from the waiver analysis apply equally here. First, if their testimony is to be believed, Clyde and Violentee did not believe that the Association had authority to manage the cemetery. Second, by complying with the Association's sign, contacting the Association's officers, and securing the Association's approval for the burial of Clyde's son and brother, the Association had a right to believe that Clyde and Violentee intended the Association to act upon that belief. Third, the Association had no idea that Clyde and Violentee secretly thought that the Association lacked authority to manage the cemetery. And fourth, the Association relied on Clyde and Violentee's conduct by continuing to manage the cemetery, approve burials, and keep track of where people were buried. Had the

Association known of Clyde and Violentee's objection, the Association could have obtained a ruling sooner.

2.1.3. Laches

For the doctrine of laches to apply, four things must exist:

- the party knew of his rights and the opportunity to assert them;
- he delayed in doing so;
- because of the delay, the adverse party had good reason to believe that the rights are worthless or abandoned; and
- given a change in conditions during the delay, it would be unjust to the adverse party to let him assert those rights, that is, the adverse party was prejudiced by the delay. *Williams v. Arnold*, 2015 Ark. App. 715, at 9, 479 S.W.3d 56, 62; *King v. French*, 2011 Ark. App. 257, at 8, 383 S.W.3d 426, 431.

Laches applies. First, Clyde and Violentee knew of their right to object to what they believed was the Association's improper exercise of authority. Second, they could have asserted those rights when Clyde's son and brother died, but Clyde and Violentee did not assert their rights. In other words, they delayed. Third, given Clyde and Violentee's seeming agreement to the Association's management, the Association had good reason to believe that Clyde and Violentee had abandoned any right they had to object to the Association's management. And fourth, the Association has spent money on the upkeep of the cemetery, money it would not

had to have spent had Clyde and Violentee successfully asserted their own right to manage the cemetery.

2.1.4. Acquiescence

And finally, Clyde and Violentee acquiesced to the Association's management of the cemetery not only by years of silence but also by paying the Association for the burial of Clyde's son and brother. Although we have not found a case on acquiescence in the cemetery context, the rule that a party may not complain about something that he acquiesced in has been applied in many contexts. *Evelyn Hills Pharm., Inc. v. First Nat'l Bank*, 289 Ark. 351, 357, 712 S.W.2d 291, 294 (1986) (agency); *Coleman v. Coleman*, 59 Ark. App. 196, 200, 955 S.W.2d 713, 716 (1997) (contract); *Frawley v. Smith*, 3 Ark. App. 74, 78, 622 S.W.2d 194, 196 (1981) (domestic relations). Those four equitable principles thus bar Clyde and Violentee from challenging the Association's right to manage the cemetery at this late juncture.

2.2. The Association has the right to manage the cemetery.

If the Court finds it necessary to consider whether the circuit court erred in finding that the Association has the right to manage the cemetery, the Court will see that the circuit court did not err. In undertaking that review, the Court views the evidence in a light most favorable for the Association. *Bean v. Nelson*, 307 Ark. 24, 25, 817 S.W.2d 415, 416 (1991).

The evidence shows that the property owners created the cemetery in 1966 under what was then A.S.A. 82-401, now Ark. Code Ann. § 20-17-903.[2] (RT143, 144). In 2009, the family created the Association to stop and prevent unauthorized burials, particularly unauthorized burials by Clyde. (RT13, 53). The Association registered with the Secretary of State and has remained in good standing ever since. (RT109). Since 2009, the Association has been the sole manager of the cemetery, authorizing 49 burials, keeping track of who is buried where, charging nominal fees for burials, holding annual meetings, adopting and following its rules, placing signs stating that its officers are the sole authority over the property, replacing broken locks, and installing a security camera. The Association has behaved exactly as an entity authorized to manage a cemetery would act.

And nobody inside the family or outside the family questioned that authority. Not even Clyde and Violentee, who paid the Association to have Clyde's son and brother buried. Larry Hatchett, Clyde's brother, said that the Association's secretary "was the one that was taking care of some of the business for us," until he and Clyde got mad. (RT117). In other words, the whole family treated the Association as if it had been tasked with managing the cemetery. Because, as April

[2] As *Skinner v. Berry* explains, § 20-17-903 has largely been supplanted by the statutory regime now found at Ark. Code Ann. §§ 20-17-1001 to -1031 for cemeteries that are created or expand their boundaries after 1977. 266 Ark. 91, 93, 583 S.W.2d 27, 28 (1979).

testified, it has been. That is more than enough evidence that the Association has management rights.

Although we have not found an identical case, an analogous one is *Powhatan Cemetery Ass'n v. Phillips*, 90 Ark. App. 424, 206 S.W.3d 277 (2005). Land was deeded in 1877 to three men as trustees of the Powhatan Cemetery. Once the trustees died, the Powhatan Cemetery Association Board took over and began managing the cemetery—laying out plots, approving burials, caring for graves and markers, communicating with funeral homes—for more than 100 years when a lawsuit began over who had authority to grant an easement over cemetery property. *Id.* at 427, 431, 206 S.W.3d at 279, 282. The challengers contended that the easement the Board had granted was ineffective, because title to the property had descended to the trustees' heirs upon death, not to the Board. This Court said that although that is generally correct, "in order to ensure that a trust may prevail rather than be extinguished due to a lack of authorized trustees, the general rule must sometimes yield when, over the course of many years, persons have assumed the mantle of trusteeship and the court has sanctioned their doing so." *Id.* at 430, 206 S.W.3d at 281. Although the Board had never been formally appointed successor trustee, this Court affirmed the finding that the Board was "qualified and acting with due authority by virtue of many years of practice and custom." *Id.* at 431–32, 207 S.W.3d at 282.

Powhatan Cemetery Association is not directly on point: unlike the Board in that case, the Association here has been given authority to manage the cemetery. Thus, the Board in *Powhatan Cemetery Association* was further removed than the Association in terms of management authority. Even so, the principles apply. For 14 years, the Association has assumed the mantle of trustee over the cemetery, authorizing burials, accepting payments, taking questions, providing answers, adopting and applying its rules, imposing and collecting fees, buying and placing signs on the gate, replacing locks, installing a security camera, holding annual meetings, keeping track of who is buried where. (RT19–20, 21, 28, 29, 53, 59, 82, 84). Given the many years of practice and custom—which the Hatchetts acquiesced in—the Association here, like the Board in *Powhatan Cemetery Association*, is acting with due authority in managing the cemetery.

3. Had the circuit court found that the Association owned the property, it would not have been error.

3.1. Clyde and Violentee may not raise this issue for the first time on appeal.

Clyde and Violentee did not raise below that the property of an unincorporated association becomes the property of a corporation only if a charter makes all members of the unincorporated association members of the corporation. Appellant's Br. at 13–14. "A party is bound by the nature and scope of the arguments made at trial and may not enlarge or change those grounds on appeal." *Travelers Cas. & Sur. Co. of Am. v. Sweet's Contr., Inc.*, 2014 Ark. 484, at 6 n.5,

450 S.W.3d 229, 234 n.5; see also *Stewart v. State*, 2018 Ark. 166, at 2, 546 S.W.3d 472, 473 (same). Consequently, Clyde and Violentee cannot make this argument now for the first time.

3.2. The Association owns the cemetery property.

As we note above, the circuit court did not find that the Association owns the cemetery property. But if it had, it would not have erred. Testimony in favor of a lost deed and its contents must be clear, concise, and satisfactory, though it need not be undisputed. *Hospital & Benevolent Ass'n v. Ark. Baptist State Convention*, 176 Ark. 946, 950, 4 S.W.2d 933, 935 (1928). However, a party who does not bring to the circuit court's attention an issue about the proper burden of proof for a lost deed cannot do so on appeal. *Carpenter v. Jones*, 76 Ark. 163, 166, 88 S.W. 871, 872 (1905). And as usual, this Court will not second guess the circuit court's credibility determination. *Pop-A-Duck, Inc. v. Gardner*, 2022 Ark. App. 88, at 18, 642 S.W.3d 220, 232.

Here, April testified that the Association was created by the family and that a deed was prepared granting the property to the Association. (RT64–65). That deed, however, burned up in a fire before it could be filed. (RT64–65). Deferring to the circuit court's credibility determinations, April's testimony about the deed's contents were clear: the family members deeded the cemetery property to the Association. There's not much more that can be said about a deed. Therefore, if the

circuit court had found that the Association owns the property, it would not have erred.

4. The requirements for injunctive relief were met.

This Court reviews the grant of a permanent injunction for an abuse of discretion. *City of Dover v. City of Russellville*, 363 Ark. 458, 460, 215 S.W.3d 623, 625. To issue a permanent injunction, a circuit court must find:

- that the petitioner is threatened with irreparable harm;
- that the harm outweighs any injury that granting the injunction will inflict on other parties;
- a likelihood of success on the merits;
- that the public interest favors the injunction. *Id.*, 215 S.W.3d at 625.

Clyde and Violentee's only argument as to any these relates to the first bullet point: that the Association is not threatened with irreparable harm from Clyde's "continued access to the cemetery," because the Association does not have a "legal right at all to the cemetery property." Appellants' Br. at 16–17.[3] Saying that the issue is about nothing more than mere "access to the cemetery" misses the mark. The problem is what Clyde does when on the property: cut locks and latches, spray paint signs, post unauthorized signs, misdirect people to him rather than the Association, destroy property, and dig unauthorized graves.

[3]By failing to mention Violentee's access, Clyde and Violentee have abandoned any argument they have about the injunction as to her.

Clyde and Violentee's actions interfere with the Association's right to manage the cemetery and irreparably harm the Association. Holding themselves out as the owners or operators or officers of the cemetery, they do things like sign fake deeds, leave instructions at the gate to contact them for information about burials, install signs with their phone numbers, and tell people that they can bury loved ones without going through the Association.

Advocating the burial of nonfamily members in the cemetery and marketing gravesites, they cause the unauthorized placement of bodies in the ground that cannot be disinterred absent a lengthy and contentious administrative and judicial processes. See, e.g., *Welch v. Faulkner*, 2019 Ark. App. 207, at 6–9, 575 S.W.3d 448, 450–52 (discussing the maze of statutes, regulations, and case law that must be followed to disinter a body).

Entering the cemetery's premises without Association permission, they cut locks and latches, allowing anybody to easily access the cemetery to desecrate the tombstones; they dig unauthorized graves; they spray paint signs; they post unauthorized signs; and they misdirect people to Clyde rather than the Association; and they destroy property. Clyde himself testified to the dangers of the gate's not being locked when he said that people had been cooking meth at the cemetery. (RT88). Those harms are irreparable.

Moreover, continuing trespasses that would result in multiple lawsuits absent an injunction are sufficient to establish irreparable harm, as are trespasses that are not susceptible of pecuniary compensation. *Du Fresne v. Paul*, 144 Ark. 87, 94, 221 S.W. 485, 487 (1920). See also *Ex parte Foster*, 11 Ark. 304, 306 (1850) (trespass is not an irreparable harm if bond and security are given to indemnify against the trespass).

Furthermore, damages that cannot be adequately compensated by money damages or redressed in a court of law are irreparable. *Mounce v. Jeronimo Insulating, LLC*, 2021 Ark. App. 195, at 6, 625 S.W.3d 367, 372. Diminution or elimination of access to property is irreparable harm. *Anita G, LLC v. Centennial Bank*, 2019 Ark. App. 217, at 10, 575 S.W.3d 561, 569. Here, Clyde's installation of his own lock on the gate is a diminution of access to the cemetery.

To the extent the Clyde and Violentee argue that the Association cannot prove irreparable harm if it does not own the cemetery, there is no ownership requirement for irreparable harm. In *Anita G*, for example, the property at issue was someone else's private property that had turned into a public easement, but another party who used the property could obtain injunctive relief for use of the property. *Id.* at 1, 575 S.W.3d at 565.

5. The circuit court did not rely on adverse possession.

Despite Clyde and Violetta's contention otherwise, the circuit court did not rely on adverse possession for its ruling. Appellants' Br. at 15 (citing (RT133,

134)). But if it had, Clyde and Violentee may not object now, because they did not object below. For example, in *Perrin-Reed v. Reed*, this Court refused to consider an argument on appeal when the appellant failed to object to an oral ruling that the circuit court had made at a hearing. Because the appellant did not object to the court's reliance on adverse possession (if there was one), she had not preserved it for appeal. 2022 Ark. App. 24, at 9, 640 S.W.3d 15, 21.

The circuit court's point in noting that the Association had managed the cemetery for 14 years was not to suggest adverse possession; it was to indicate that doctrines like waiver, estoppel, laches, and acquiescence barred Clyde and Violentee from objecting at this late date. (RT134). That reading of the court's comments is supported by other comments from the court that soon followed. The court found that the Association "has had dominion and control over this cemetery since 2014, that [Clyde and Violentee] were aware of it, and … went so far as to file documents which … list [Clyde] as the president of the selfsame entity that's suing him." (RT135). And as we explain in § 2.1, the court was right: each of those doctrines applies.

REQUEST FOR RELIEF

The Court should affirm.

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CERTIFICATE OF SERVICE

I certify that a copy of the foregoing has been filed via the efiling system on July 19, 2024; that the system will copy opposing counsel; and that a copy will be e-mailed to the Honorable Chip Welch on July 19, 2024.

/s/ Brett D. Watson

Brett D. Watson

CERTIFICATE OF COMPLIANCE

This brief complies with Administrative Order No. 19's requirements concerning confidential information, Administrative Order No. 21, Section 9's requirement that briefs not contain hyperlinks to external papers or websites, and with the word-count limitation in Arkansas Supreme Court Rule 4-2(d) in that it contains 5,791 words within the jurisdictional statement, the statement of the case and the facts, the argument, and the request for relief.

/s/ Brett D. Watson

Brett D. Watson